

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 17, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, JULY 17, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, JULY 16, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0084645 WELLS FARGO v. FISK, TRACY

Motion to Vacate Dismissal Under Code of Civil Procedure section 664.6 and Enter Judgment Pursuant to Stipulation

The unopposed motion is granted. The dismissal entered on January 8, 2024 is vacated.

Judgment is entered against defendant Tracy Fisk in the amount of \$13,892.00, which includes damages of \$13,447.00 plus costs of \$445.00.

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2. M-CV-0093016 WELLS FARGO v. HENDRICKS, ANGELINA

Motion to Vacate Dismissal Under Code of Civil Procedure section 664.6 and Enter Judgment Pursuant to Stipulation

The unopposed motion is granted. The dismissal entered on December 17, 2025 is vacated.

Judgment is entered against defendant Angelina Hendricks in the amount of \$6,327.00, which includes damages of \$6,012.00 plus costs of \$315.00.

3. M-CV-0093089 CREDITORS ADJUST BUREAU v. CUCAMONGA ENT

Richard A. Hall, Esq.'s Motion to be Relieved as Counsel for Defendant Cucamonga Enterprises LLC

The motion is granted. Richard A. Hall, Esq. shall be relieved as counsel of record for defendant Cucamonga Enterprises LLC upon the filing of the proof of service of the signed order after hearing.

Richard A. Hall, Esq.'s Motion to be Relieved as Counsel for Defendant Robert Stern

The motion is granted. Richard A. Hall, Esq. shall be relieved as counsel of record for defendant Robert Stern upon the filing of the proof of service of the signed order after hearing.

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4. M-CV-0093106 CREDITORS ADJUST BUREAU v. ISMAYELIAN, CHRISTINE

Plaintiff's Motion for Terminating Sanctions, Striking Answer and Entering Default, and Request for Monetary Sanctions Against Defendant Christine Ismayelyan

The motion is granted in part.

In the current request, plaintiff seeks both terminating sanctions and monetary sanctions against defendant Christine Ismayelyan. Terminating sanctions may be imposed to either (1) strike the entirety or a part of a pleading; (2) stay the proceedings until the party obeys a discovery order; (3) dismiss all or part of an action; or (4) render the entry of a default judgment. (Code of Civil Procedure section 2023.030(d).) The court also has inherent authority to impose terminating sanctions based upon discovery abuses. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 197, disapproved on other grounds in *Presbyterian Camp and Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.) The issuance of terminating sanctions, however, is an extreme remedy. The dismissal of an action is a drastic sanction that is only applied after a party has had an opportunity to comply with a court order yet still fails to do so. (see *Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1581.) The totality of the circumstances surrounding the discovery violations are considered when ordering terminating sanctions: (1) whether the party's conduct was willful; (2) the detriment to the propounding party; and (3) the number of formal and informal attempts to obtain discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

Here, defendant has failed to comply with the two discovery orders entered on April 17, 2026. The court also imposed monetary sanctions upon defendant at the time both orders were entered. Nonetheless, it is worth reiterating that the purpose of discovery sanctions is to prevent abuse of the discovery process and correct problems presented. (*Do v. Superior Court* (2003) 109 Cal.App.4th 1210, 1213-1214.) It is not a weapon to provide for punishment, forfeiture, or avoid of trial on the merits. (*Ibid.*) Considering the totality of the circumstances and on balance, the issuance of terminating sanctions at this juncture is too extreme a sanction. Nonetheless, the court advises defendant that the continued failure to comply with discovery obligations may result in the court issuing more extreme sanctions, which include the issuance of terminating sanctions.

Plaintiff's request for monetary sanctions is granted. Sanctions in the amount of \$2,171.90 are imposed upon defendant Christine Ismayelyan.

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5. M-CV-0093869 WELLS FARGO v. NORTHEY, ANDREA

The motion for summary judgment is dropped from the calendar. An order for dismissal was entered on June 26, 2026.

6. MCV-0096555 SANSOM, JAMES v. CHIANG, JENNIFER

Defendant Jennifer Chiang's Motion for Temporary Orders Regarding Utility Service and Payment Charges

The appearances of the parties are required for the hearing.

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7. S-CV-0045659 LARSEN, SHERRY v. PLACER VALLEY SPORTS COMPLEX

This tentative ruling is issued by the **Honorable Suzanne I. Gazzaniga**:

The motion for attorneys' fees is continued to be heard on **Tuesday, August 4, 2026 at 8:30 a.m. in Department 32 by Judge Gazzaniga**. No further briefing is permitted.

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8. S-CV-0051046 NELSON, MICHAEL v. RONK, SUZY

This tentative ruling is issued by the **Honorable Michael W. Jones**.

The motion for trial preference, the motion to disqualify, and the Case Management Conference are continued to be heard on **Thursday, July 30, 2026 at 8:30 a.m. in Department 3** by the Honorable Michael W. Jones.

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9. S-CV-0051496 THE STANDARD FIRE INS CO v. JS WEST & CO

Defendant JS West and Company's Motion for Leave to File a Cross-Complaint

The unopposed motion is granted.

Defendant JS West and Company shall file and serve the cross-complaint by July 31, 2026.

10. S-CV-0052456 PAINTER, KRESTA v. HANLY, SHAYN

Plaintiff's Motion to Compel Additional Responses to Written Discovery

The court notes that plaintiff filed a Notice of Narrowing Issues for Hearing on July 6, 2026. In light of the narrowing of matters identified by plaintiff, the court issues the following ruling on the remaining disputed issues:

Plaintiff's narrowed motion is granted in part.

Defendant Alterra Mountain Company shall provide further verified responses, without further objections, to Form Interrogatories, Set One, no. 15.1 by July 27, 2026.

Defendant Palisades Tahoe Resort, LLC shall provide further verified responses, without further objections, to Form Interrogatories, Set One, no. 15.1 by July 27, 2026.

Defendant Shayn Hanly shall provide further verified responses, without further objections, to Form Interrogatories, Set One, no. 15.1 by July 27, 2026.

Defendant Alterra Mountain Company shall provide further verified responses and responsive documents, without further objections, to Request for Production of Documents, no. 7 by July 27, 2026.

The remainder of the requests are denied.

The requests for monetary sanctions are denied as to both parties.

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11. S-CV-0053798 ACEE GRP v. RISECON NA CORP

Cross-Complainants Risecon Norh America Corporation and Domenique Montes'
Amended Application for Right to Attach Order and Issuance of Writ of Attachment

Ruling on Request for Judicial Notice

Cross-complainants' request for judicial notice is granted pursuant to Evidence Code section 452.

Cross-defendant's request for judicial notice is granted pursuant to Evidence Code section 452. However, it is noted that the court taking judicial notice of a document is not the same as accepting the truth of its contents or a particular interpretation of its meaning. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

Ruling on Application

The application is denied. Cross-complainants have not made a sufficient showing of the probable validity of their claim. Since cross-complainant have not met their burden, the request is denied.

12. S-CV-0054095 WILLIAM JESSUP UNIV v. REEVE-KNIGHT CONST

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant Reflok, Inc.'s Contested Motion for Good Faith Settlement Pursuant to
Code of Civil Procedure section 877.6

The motion is granted.

Based upon the factors set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settlement defendant's proportionate share of liability for plaintiff's injuries and is therefore in good faith within the meaning of Code of Civil Procedure section 877.6.

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13. S-CV-0054769 KARRI KARASINSKI, KAREN v. GENERAL MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion for Attorney's Fees and Costs

In the current request, plaintiff seeks \$19,716.50 in attorneys' fees and \$1,011.08 in costs pursuant to Civil Code section 1794(d). The buyer who prevails under the Song-Beverly Act - colloquially referred to as a "lemon law" case - is statutorily entitled to attorney's fees and costs. (Civil Code section 1794(d); *Pulliam v HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405-406.) The prevailing party has the burden of showing the requested fees and costs were reasonably incurred, reasonably necessary, and reasonable in amount. (*Ibid.*) The reasonableness of any attorney's fees award begins with the lodestar calculation, i.e. the actual time spent and the reasonable hourly compensation for the attorney. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135; *Pulliam, id.* at p. 406.)

The court has carefully considered the number of hours expended by counsel along with the hourly rates for comparable work within Placer County and awards \$17,276.50 broken down as follows:

NAME	RATE	HOURS	TOTAL
Anthony Greco	\$495/hr	21.2	\$10,494.00
Christopher Urner	\$475/hr	7.8	\$ 3,705.00
Jorge Acosta	\$450/hr	3.7	\$ 1,665.00
Timam Khoubian	\$375/hr	1.1	\$ 412.50
Law Clerk "SG"	\$250/hr	4.0	\$ 1,000.00
TOTAL		37.8	\$17,276.50

In sum, the motion is granted. Plaintiff is awarded \$17,276.50 in attorneys' fees and \$1,011.08 in costs.

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14. S-CV-0054788 PEYMANEH, SOUROUSHPOUR v. CARDONA, LUPE

Petition for Approval of Minor's Compromise Claim for Minor Arvin Keshvarzian

The petition is denied without prejudice.

The request seeks the disbursement of the funds to the petitioner rather than placing the monies into a blocked account for the benefit of the minor child. There is an insufficient showing to support such a disbursement to the petitioner. There is also an insufficient showing as to why a blocked account is not being established for the minor child. For these reasons, the petition is denied.

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15. S-CV-0055169 NIJJAR, SULINDER v. CENTRAL OREGON TRUCKING CO

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Sierra Pacific Industries, Inc.'s Demurrer to Plaintiff's Fifth Cause of Action in the Second Amended Complaint (SAC)

Ruling on Request for Judicial Notice

Plaintiff's request for judicial notice is denied.

Ruling on Demurrer

The demurrer is sustained. A review of the allegations within the SAC show that plaintiff has not sufficiently alleged compliance with Code of Civil Procedure section 377.32. While the section does not require the filing of such an affidavit prior to commencing an action, it does subject plaintiff's complaint to a plea in abatement. (*Parsons v. Tickner* (1995) 31 Cal.App.4th 1513, 1524.) The plea in abatement may be raised by the filing of a demurrer. (*The Rossdale Group, LLC v. Walton* (2017) 12 Cal.App.5th 936, 943.) The fifth cause of action is abated until such time as plaintiff establishes compliance with Section 377.32. Plaintiff is afforded leave to amend the SAC when allegations of compliance may be properly alleged.

Plaintiff-In-Intervention Securitas Security Services USA, Inc.'s Motion for Leave to File Complaint-In-Intervention

The unopposed motion is granted.

Plaintiff-In-Intervention shall file and serve the complaint-in-intervention by July 27, 2026.

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16. S-CV-0055627 PETERSON, KATHY v. ROLLER KING ROSEVILLE

Defendant Lynette Saturnino's Motion for Leave to File First Amended Answer (FAA)

The unopposed motion is granted. Defendant shall file and serve the FAA by July 31, 2025.

Defendant Lynette Saturnino's Motion for Leave to File a Cross-Complaint

The unopposed motion is granted. Defendant shall file and serve the cross-complaint by July 31, 2026.

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17. S-CV-0055798 MOINVASIRI, DAVID v. TESLA MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant's Motion to Reclassify the Action as a Limited Civil Case

The motion is denied. Defendant has not made a sufficient showing that the UCL and CRLA claims are improperly pleaded as unlimited civil claims.

Defendant's Demurrer to the First Amended Complaint (FAC)

Ruling on Requests for Judicial Notice

Defendant's request for judicial notice as to Exhibit L is denied. Judicial notice may not be used as a mechanism for turning a demurrer into an evidentiary hearing. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.)

Plaintiff's request for judicial notice is granted under Evidence Code section 452.

Ruling on Demurrer

The demurrer is overruled. The FAC, when read as a whole, alleges sufficient facts to support each of the five causes of action.

Defendant shall file and serve its answer or general denial by July 31, 2026.

Defendant's Motion to Strike the First Amended Complaint (FAC)

The motion to strike is denied. The challenged allegations, when read as a whole within the FAC, are properly pleaded and are not irrelevant, false, improper, or not drawn in conformity with the law. Defendant shall file and serve its answer or general denial by July 31, 2026.

Case Management Conference

The case management conference is continued to **Friday, September 4, 2026 at 9:00 a.m. in Department 1.**

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18. S-CV-0056436 BODWAY, MAXINE v. SCHWARTZ, MYLES

The reserved hearing on plaintiff's motion for leave to file a second amended complaint (SAC) is dropped from the calendar as no moving papers were filed with the court.

19. S-CV-0056735 MONTANA-RIOS, CARMELITA v. AIR INTL US

Defendant Air International US, Inc.'s Demurrer to the Verified Complaint and Motion to Strike the Verified Complaint

Defendant's demurrer and motion to strike are dropped from the calendar.

Plaintiff filed a first amended verified complaint on July 6, 2026.

20. S-CV-0056838 SKORODUMOVA, DARIIA v. NYACK, INC

Plaintiffs' OSC re Preliminary Injunction and Defendants' Nyackk, LLC; Nyak, Inc.; Kyle Wells; Stewart P. Wells; Stewart B. Wells; Nyaco, LLC; and Nyaco, Inc.'s Demurrer to the First Amended Complaint (FAC)

The appearances of the parties are required for the hearing on both motions.

21. S-CV-0057018 KING, TED v. TARVER, RUSSELL

Defendant Santiago Garcia's Demurrer to Plaintiff's Complaint

Defendant's demurrer is dropped from the calendar.

Plaintiff filed a first amended complaint on April 2, 2026.

22. S-CV-0057046 HAVILAND, ELIZABETH v. SOBERLINK HEALTHCARE

Dustin L. Taylor's Esq.'s Application to Appear *Pro Hac Vice* for Defendant Soberlink Healthcare, LLC

The application is granted as prayed.

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23. S-CV-0057089 MACRAE, WESTON v. SHIRANN, MOHAMMED

At the direction of the Presiding Judge and as no moving papers were filed with the court, the motion for preliminary injunction is dropped from the court's calendar.

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24. S-CV-0057114 STARK, COLIN v. TESLA, INC

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant's Motion to Compel Arbitration

The motion is granted. In the current request, defendant seeks to compel plaintiff to participate in arbitration pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), asserting the Motor Vehicle Order Agreement entered into by the parties includes a valid arbitration provision. Plaintiff does not dispute the existence or validity of the arbitration agreement. Plaintiff's sole dispute is in regards to the enforceability of the agreement. Specifically, plaintiff contends that the arbitration agreement is both procedural and substantively unconscionable.

The party opposing the motion bears the burden of proving, by preponderance of the evidence, those facts necessary to support the asserted defense. (*Gamboa v. Northeast Comm. Clinic* (2021) 72 Cal.App.5th 158, 164-165.) Unconscionability is also a defense that may be asserted by the plaintiff under the FAA. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1142-1143.) The plaintiff must establish the existence of both procedural - the manner in which the contract was negotiated - and substantive - the concerns that the contract terms are unreasonably one-sided - unconscionability. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125-126.) The unconscionability showing is evaluated on a sliding scale: the more substantive unconscionability in the contract the less procedural unconscionability is required and visa versa. (*Gurganus v. IGS Solutions LLC* (2025) 115 Cal.App.5th 327, 334.) Here, plaintiff does not make a sufficient showing of either procedural or substantive unconscionability so as to prevent enforcement of the arbitration provision. In light of this, the motion is granted in its entirety.

The current action is stayed pending completion of arbitration. (Code of Civil Procedure section 1281.4; 9 U.S.C.A. section 3.)

The case management conference set for August 14, 2026 at 9:00 a.m. in Department 1 is vacated.

An OSC re status of arbitration is set for Friday, February 5, 2027 at 9:00 a.m. in Department 1.

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25. S-CV-0057647 SINGH, SWAIMAN v. DEOL, HARPRAN

Plaintiff's OSC re Preliminary Injunction

The appearances of the parties are required for the hearing, which will be heard on
JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.